

Court No. - 21

Case :- WRIT - C No. - 711 of 2023

Petitioner :- Ghan Shyam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sushil Kumar Tiwari

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri N.K. Tiwari has accepted notice on behalf of Electricity Department. He prays for and is granted time to ascertain whether any final assessment order has been passed in the matter and in case any such order is in existence, to bring the same on record.

List as fresh on 17.1.2023 showing name of Sri N.K. Tiwari as counsel for respondents.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.1.2023

SL

Court No. - 21

Case :- WRIT - C No. - 711 of 2023

Petitioner :- Ghan Shyam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sushil Kumar Tiwari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

As prayed by Sri N.K. Tiwari, learned counsel for the Electricity Department, put up as fresh tomorrow alongwith record of Writ-C No.37137 of 2022.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.1.2023

SL

Court No. - 21

Case :- WRIT - C No. - 711 of 2023

Petitioner :- Ghan Shyam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sushil Kumar Tiwari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Put up tomorrow i.e. on 19.01.2023.

Order Date :- 18.1.2023

Sumit Kumar

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

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Petitioner :- Ghan Shyam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sushil Kumar Tiwari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner has challenged the recovery citation dated 1.12.2020 issued by respondent no.5 for recovery of electricity dues from the petitioner in a case of alleged theft of electricity.

On 10.01.2023, the following order was passed:-

"Sri N.K. Tiwari has accepted notice on behalf of Electricity Department. He prays for and is granted time to ascertain whether any final assessment order has been passed in the matter and in case any such order is in existence, to bring the same on record.

List as fresh on 17.1.2023 showing name of Sri N.K. Tiwari as counsel for respondents."

Sri N.K. Tiwari, learned counsel appearing on behalf of the Electricity Department, on instructions, states that the impugned recovery has been withdrawn and the respondent Electricity Department is making enquiry on the representation of the petitioner and final assessment will be made after the enquiry is completed.

Sri N.K. Tiwari states that the respondents will follow the procedure prescribed under the Electricity Supply Code, 2005 while finalising the assessment.

Having regard to the aforesaid stand of the respondent Electricity Department, the petition stands disposed of in terms thereof.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.1.2023

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